

Smt. Renu v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 17 November 2017 · Writ - C No. 54746 of 2017 · **Writ disposed; liberty to invoke Clause 6.5; restore on deposit of Rs 50,000.**

HEADNOTE

Where supply had been disconnected for unpaid bills and the consumer alleged regular payment and a pending correction application, the Division Bench disposed of the writ with liberty to invoke Clause 6.5 of the Electricity Supply Code, 2005 for rectification, and directed restoration if Rs 50,000 was deposited within ten days, the balance to abide the bill as corrected in those proceedings.

FACTUAL SUMMARY

Smt. Renu's electricity connection was disconnected by U.P. Power Corporation Ltd. for non-payment of bills. She claimed she had regularly paid the bills and that the connection was nonetheless disconnected, and that she had already applied for correction of the bill. She was willing to deposit some amount to secure restoration. Counsel for the Corporation stated that she could invoke Clause 6.5 of the Electricity Supply Code, 2005 for bill correction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-rectification-and-restoration

HOLDING

A consumer disconnected for unpaid bills, who alleged regular payment and a pending correction application, was given liberty to invoke Clause 6.5 of the Electricity Supply Code, 2005 for rectification of the bill. Restoration was directed if Rs 50,000 was deposited within ten days; payment of the balance would depend on the bill as corrected in those Clause 6.5 proceedings. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The Court did not examine whether the bills were correctly raised or whether the petitioner had in fact paid them; that issue was left to Clause 6.5 proceedings. ¶ 1